

STATE OF IOWA
KIM REYNOLDS
GOVERNOR

April 18, 2025

The Honorable Paul Pate
Secretary of State of Iowa
State Capitol
Des Moines, Iowa 50319

Dear Mr. Secretary,

I hereby transmit:

House File 860, an Act prohibiting state and local regulations on fuel-powered equipment based on the equipment's fuel source.

The above House File is hereby approved on this date.

Sincerely,

A handwritten signature in black ink, reading "Kim Reynolds".

Kim Reynolds
Governor of Iowa

cc: Secretary of the Senate
Clerk of the House



House File 860

AN ACT
PROHIBITING STATE AND LOCAL REGULATIONS ON FUEL-POWERED
EQUIPMENT BASED ON THE EQUIPMENT'S FUEL SOURCE.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA:

Section 1. NEW SECTION. 214A.41 Definitions.

As used in this subchapter, unless the context otherwise requires:

1. "*Fuel source*" means any of the following:
 - a. Any substance or combination of substances that is used to power an internal combustion engine, including but not limited to a biofuel, diesel fuel, gasoline, hydrogen, propane, or a renewable fuel.
 - b. Any source of energy delivered or placed into the battery or other energy storage device that is used to power an electric motor.
2. "*Fuel-powered equipment*" means any good subject to a contract for sale under chapter 554, article 2, that is manufactured to be operated with an engine or motor, regardless of whether it is self-propelled.
3. "*Government entity*" means any of the following:
 - a. A principal central department of the executive branch as enumerated in section 7E.5, or a state authority, board,

commission, council, or independent agency that is not under the direction of a principal central department as enumerated in section 7E.5.

b. A political subdivision of the state, including but not limited to a county as provided in chapter 331 or city as provided in chapter 364.

Sec. 2. NEW SECTION. 214A.42 State and local regulation governing fuel-powered equipment — prohibition.

A government entity shall not adopt or continue in effect any regulation, including in the form of a rule, ordinance, or resolution, that does any of the following:

1. Prohibits or restricts a person from possessing, storing, transferring, acquiring, operating, maintaining, repairing, or reusing fuel-powered equipment or parts of fuel-powered equipment solely because such equipment is manufactured to be powered by a specific fuel source.

2. Requires that a person selling fuel-powered equipment or parts of fuel-powered equipment do any of the following:

a. Sell fuel-powered equipment or parts of fuel-powered equipment solely because such equipment is manufactured to be powered by a specific fuel source.

b. Maintain an inventory of fuel-powered equipment or parts of fuel-powered equipment solely because such equipment is manufactured to be powered by a specific fuel source.

Sec. 3. NEW SECTION. 214A.43 State and local regulation governing fuel-powered equipment — void.

Any regulation described in section 214A.42 is void and unenforceable.

Sec. 4. Section 331.301, Code 2025, is amended by adding the following new subsection:

NEW SUBSECTION. 27. A county shall not adopt or continue in effect any regulation, including in the form of an ordinance or resolution, that governs fuel-powered equipment as provided in chapter 214A, subchapter IV.

Sec. 5. Section 364.3, Code 2025, is amended by adding the following new subsection:

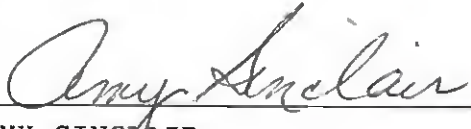
NEW SUBSECTION. 20. A city shall not adopt or continue in effect any regulation, including in the form of an ordinance

or resolution, that governs fuel-powered equipment as provided in chapter 214A, subchapter IV.

Sec. 6. DIRECTIONS TO CODE EDITOR. The Code editor is directed to arrange the following sections in chapter 214A, as enacted by this Act, into a new subchapter IV:

Sections 214A.41 through 214A.43.

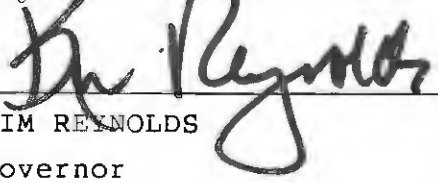

PAT GRASSLEY
Speaker of the House


AMY SINCLAIR
President of the Senate

I hereby certify that this bill originated in the House and is known as House File 860, Ninety-first General Assembly.


MEGHAN NELSON
Chief Clerk of the House

Approved April 18th, 2025


KIM REYNOLDS
Governor